

World Trade Organization

The World Trade Organization (WTO) is an international organization established in 1995 following the ratification of the Uruguay Round Agreements. The WTO succeeded the 1947 General Agreement on Tariffs and Trade (GATT), which was created as part of the U.S.- and Europe-led post-World War II effort to build a stable, open, and rules-based global trading system. GATT/WTO membership expanded over time, and today the WTO's 166 members, including the United States, collectively account for 98% of global trade. The WTO's basic functions include administering its trade agreements; serving as a negotiating forum for trade liberalization and rules; and providing a dispute settlement (DS) process. WTO agreements cover trade in goods, agriculture, and services; tariff and nontariff barriers; and rules on practices relating to trade, such as trade remedies, technical barriers to trade (TBT), intellectual property rights (IPR), and subsidies. The agreements are based on [core principles](#) of nondiscrimination—most-favored nation (MFN) and national treatment—transparency, and fair competition. WTO rules also include exceptions, such as allowing preferential treatment for free trade agreement partners and flexibilities for developing countries.

The GATT/WTO system has reduced trade barriers, supported global trade expansion and economic growth, and helped manage trade frictions. At the same time, the WTO faces [serious challenges](#). WTO members have struggled to reach consensus and negotiate a comprehensive round of major trade liberalization and new rules since 1994. Concurrently, some members are increasingly using discriminatory measures and industrial policies that may violate both the letter and spirit of core trade rules. Further, members have struggled to respond to trade-related and supply chain disruptions caused by the COVID-19 pandemic, Russia's war in Ukraine, and conflict in the Middle East. Several WTO members and observers are concerned that the WTO is losing relevance due to its inability to adapt to the modern global economy. As a result, WTO members are considering various reforms to the institution in attempts to safeguard and improve it.

The Trump Administration has [expressed skepticism](#) over the WTO's value, asserting a lack of reciprocity in WTO members' trade concessions. Some WTO members [contend](#) that U.S. tariff actions run counter to WTO rules and undermine the trading system. Congress has [recognized](#) the WTO as the "foundation of the global trading system" and has a legislative and oversight role over WTO agreements. Some Members [have expressed](#) support for WTO reforms, new rules, and U.S. leadership in the WTO. Others have criticized the WTO and [opposed](#) U.S. participation.

Post Doha Round

The Doha Development Agenda, the most recent "round" of multilateral WTO negotiations ([Table 1](#)), was launched in 2001, but effectively ended in a stalemate in 2015

without a package of new agreements. The WTO's diverse membership and "single undertaking" approach (i.e., nothing is agreed until everything is agreed) made consensus on the broad Doha mandate difficult, and these aspects continue to beset WTO negotiations. Doha was generally characterized by persistent differences among developed and developing country WTO members across major issues, including market access and agriculture. Members successfully negotiated components of the Doha agenda as standalone agreements, such as the multilateral Trade Facilitation Agreement, which committed members to remove customs obstacles at the border and entered into force in 2017. In 2022, WTO members also concluded the Agreement on Fisheries Subsidies, with commitments to curb certain harmful subsidies; it was notable as the first deal to cover environmental sustainability issues. Members continue talks on provisions [left out of the 2022 deal](#).

Table 1. GATT/WTO Rounds of Negotiations

Years	Round	Subjects Covered	Members
1947-1961	Geneva, Annecy, Torquay, Geneva II, Dillon	Five rounds of tariff reductions	23 (1947); 26 (1961)
1964-1967	Kennedy	Tariffs, antidumping measures	62
1973-1979	Tokyo	Tariffs, antidumping, subsidies, TBT, government procurement	102
1986-1994	Uruguay	Tariffs, nontariff measures (NTMs), rules, services, IPR, DS, textiles, agriculture, WTO institution	123
2001-2015*	Doha	Tariffs, NTMs, agriculture, services, trade facilitation, trade remedies, development, and others	142 (2001); 166 (current)

Source: CRS based on World Trade Organization (WTO) sources.

Note: * In 2015, WTO members [did not reaffirm](#) Doha's mandates.

Plurilateral Initiatives

The WTO system of agreements also includes plurilateral agreements, which involve a subset of WTO members as participants; various plurilateral talks are ongoing. Plurilateral agreements with U.S. participation include

- **Government Procurement Agreement (GPA).** Revised in 2014, provides market access for various nondefense government projects to its 49 signatories.
- **Information Technology Agreement (ITA).** Signed in 1996 and expanded in 2015, eliminates import duties for certain IT and IT-enabled products (on an MFN basis).
- **Joint Initiative on Services Domestic Regulation.** Entered into force in 2024 among 72 WTO members, improves transparency on domestic processes and addresses regulatory barriers affecting services trade.

Other plurilaterals include the Investment Facilitation for Development (IFD) Agreement with 131 WTO members,

and the Agreement on Electronic Commerce (ECA) with 67 members, both of which concluded in 2024. The United States is not a member of the IFD Agreement but had participated in the e-commerce talks until the Biden Administration [withdrew U.S. support](#) in 2023, citing the need for domestic policy space. The United States and many WTO members have generally supported plurilateral deals, particularly where consensus among the broader membership has not been feasible. Some members remain concerned that plurilaterals could marginalize those countries not participating or allow “[free riders](#)” to benefit from others’ commitments. A few members like India have staunchly opposed plurilateral deals, arguing they should not be incorporated into the WTO legal framework, and acted to prevent the formal adoption of recent agreements like the IFD. USTR Jamieson Greer [emphasized](#) the U.S. priority of “exploring a pathway to incorporate plurilaterals into the WTO architecture,” [assessing](#) without that path, the WTO will no longer be “a viable forum for negotiating.”

Ministerial Conference (MC) Outcomes

The MC is the WTO’s top decisionmaking body; it meets biennially and at times has been an action-forcing event for achieving substantive outcomes. Members held their latest ministerial (MC14) in March 2026. At MC14, members did not announce major outcomes in priority areas or issue a final ministerial declaration. Members sought to clarify a work plan toward WTO reform, bridge differences in agricultural issues, and make progress in the second phase of fisheries talks. For the first time, members were unable to agree to extend the moratorium on customs duties on electronic transmissions, which had been periodically renewed since 1998. A proposed deal to extend the moratorium through 2030 was ultimately blocked by Brazil and Turkey; U.S. trade officials [expressed](#) disappointment over the outcome. While some [saw](#) MC14 as a failure overall, others pointed to “[incremental progress](#)” and “[key advancements](#)” on issues like the ECA.

Ongoing Challenges

Key issues facing Congress include the effect of WTO agreements on the U.S. economy, outcomes of negotiations and reform efforts, and the value of U.S. membership and leadership in the WTO. Members have expressed views on WTO negotiating priorities in [legislation](#) and urged U.S. engagement and leadership in certain areas. In early 2026, the House Ways and Means Committee held a hearing on advancing U.S. interests at MC14. P.L. 103-465, which implemented the Uruguay Round Agreements, permits periodic [congressional review of U.S. participation in the WTO](#) and sets procedures for consideration of a joint resolution to withdraw congressional approval of WTO agreements (§125). In the 119th Congress, such a resolution (H.J.Res. 93) was introduced; no action was taken.

Negotiating Agenda. WTO members’ ability to negotiate rules is central to WTO legitimacy, but some observers have asserted “[hostage-taking](#)” [tactics](#), and consensus requirements have often stymied progress. Some issues, such as agricultural subsidies and public stockholding programs for food security, remain contentious and unresolved from Doha. Some WTO members are concerned about such issues getting deprioritized for newer priorities. For example, with the emergence of new trade barriers,

global supply chains, and technology advances since 1995, countries have sought to address “21st century” issues like digital trade, state-owned enterprises, and climate change. At the same time, U.S. officials contend that WTO rules were not designed to effectively handle the challenges of China’s statist trade practices and [stress](#) the limitations of the WTO’s negotiating function to address systemic issues like overcapacity in production and supply chain resilience.

WTO Reform. WTO members have agreed to advance reforms and have [committed](#) “to improve all [WTO] functions” through a “Member-driven, open, transparent, inclusive” process, but they continue to debate a structured work plan. Long-standing U.S. priorities include improving transparency and WTO members’ compliance with existing notification requirements (e.g., for subsidies), and putting conditions on the use of special and differential treatment by developing countries, especially significant commercial players. The Trump Administration circulated [papers](#) in the WTO in 2025 and 2026 with its stance on needed reforms.

While many WTO members share certain U.S. concerns, approaches to solutions differ and remain contentious, particularly for DS reform. The first Trump Administration and successive Administrations blocked appointments to the WTO’s Appellate Body (AB), arguing the AB exceeded its authority and engaged in “judicial overreach” in panel decisions. This led the body to fall below its quorum and cease to function in 2019. Some WTO members, including Canada, China, and the EU, agreed to the [Multi-Party Interim Appeal Arbitration Arrangement](#) to hear appeals in their disputes. Some Members of Congress have [expressed concerns](#) about WTO DS. Many observers question the DS system’s sustainability given WTO members’ inability to agree to reforms and negotiate new agreements.

Tariffs and Trade Enforcement. Some WTO members and observers are concerned that U.S. tariffs imposed since 2017 and counter-tariffs by U.S. trading partners have strained the WTO and DS system. In this view, unilateral measures, including tariffs justified by national or economic security, could undermine WTO credibility and lead to tit-for-tat trade restrictions. U.S. officials [maintain](#) that the WTO does not have “competence on security matters” and that a country’s “essential security interests” are self-judging and not reviewable by DS panels, despite adverse [DS decisions against the United States](#) over past tariffs. Global tariffs imposed by President Trump since 2025 heightened trade frictions with WTO members. While some (e.g., Canada, China) imposed retaliatory tariffs and sought WTO DS proceedings, most members opted to negotiate bilateral trade and investment concessions in exchange for reduced U.S. tariffs. Renewed use of tariffs and unilateral trade actions has also prompted debate about the MFN principle, which USTR [contends](#) is “unsuitable” for the current era and “prevents countries from optimizing” their trade relations. Some, like the EU, [support](#) reassessing MFN and “its link to reciprocity” and members’ “respective levels of openness.” Despite recent tariff actions, [72% of global goods trade](#) continues to be covered by MFN tariff terms.

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